IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
SPECIAL BENCH
COURT - 1

ITEM No.5

C.P.(CAA)/14(AHM)2022 in
C.A.(CAA)/47(AHM)2021

Order under Sections 230-232 of the Companies Act, 2013

IN THE MATTER OF:

Bullion Flexipack Pvt ltd
Truder Packaging Pvt Ltd **.....Applicants**

Order delivered on: 19/05/2023

Coram:

Mr. Praveen Gupta, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of order. The order is pronounced in the open court vide separate sheet.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

PRAVEEN GUPTA
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CP (CAA) No.14/NCLT/AHM/2022 in
CA(CAA)No.47/NCLT/AHM/2021

[Application under Sections 230-232 of the Companies Act,2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

Scheme of Amalgamation in the nature of Demerger

of

Bullion Flexipack Private Limited
(Demerged Company)

with

Truder Packaging Private Limited
(Resulting Company)

and
Their respective Shareholders and Creditors

Bullion Flexipack Private Limited
Registered Office at:
Plot No. 328/15, Jarod
Rasulabad Road Baroda - Halol
Express Highway Near Referral Hospital
Jarod, Gujarat-391 510.

...Petitioner No. 1/ Demerged Company

With

Truder Packaging Private Limited
Registered Office at:
437/A G.I.D.C., Makarpura
Vadodara, Gujarat - 390 010

...Petitioner No. 2/ Resulting Company

Order Pronounced on: 19.05.2023

Coram: Mr. Praveen Gupta-Member (Judicial)
Mr. Kaushalendra Kumar Singh-Member (Technical)

Appearance:

Mr. Jaimin Dave, Advocate along with Ms. Hirva Dave and Mr. Priyank Dave, Advocates for the applicant companies.

Mr. Liladhar Sharma, Assistant Director for Regional Director-NWR.

Ms. Pankti Shah, Advocate for Ms. Maithili D. Mehta, Advocate for the Income Tax Department.

ORDER

1. The present joint Company Petition has been filed by the Applicant Companies under Sections 230 – 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, seeking approval of the Scheme of Arrangement in the nature of Demerger of the undertaking of Business Unit 1 pertaining to manufacturing of sleeve and carrybag business of Bullion Flexipack Private Limited (**"Petitioner Demerged Company"**) into Truder Packaging Private Limited (**"Petitioner Resulting Company"**) and their respective Shareholders with the effect from the Appointed Date, i.e. 1st April 2021 as mentioned in the Scheme.

2. As per the Scheme of Arrangement, the Business Unit 1/ Demerged Undertaking of the Demerged Company, shall be transferred to the Resulting Company, along with entire assets and

liabilities pertaining to the Business Unit 1/ Demerged Undertaking, with effect from the Appointed Date of the Scheme.

3. The Petitioner Companies had filed a joint application before this Tribunal being CA (CAA) No. 47 of 2021, sought dispensation of the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of both the Petitioner Companies. This Tribunal, vide order dated 16.11.2021, dispensed with the meetings of Equity Shareholders and Unsecured Creditors of both the Petitioner Companies as well as the Secured Creditors of the Resulting Company. However, a direction for holding and convening of meeting of the Secured Creditors of Demerged Company as per law was given by this Tribunal.

4. In pursuance to the order dated 16.11.2021, the Notice of the meeting indicating the day, date, place and time together with a copy of the Scheme pursuant to Section 102 of the Companies Act, 2013 read with Sections 230 to 232 of the Companies Act, 2013 and Rule 6 of the Companies (CAA) Rules, 2016 along with prescribed form of proxy, attendance slip, etc. was sent individually via E-mail on 30.11.2021 as well as personally delivered through courier on 01.12.2021 to all the Secured Creditors of the Demerged Company. The notice of the meeting of the Secured Creditors of the Demerged Company was also published in Gujarati Daily, Divya Bhaskar, Vadodara Edition on 01.12.2021 and in English Daily, Business Standard, Ahmedabad Edition on 02.12.2021.

5. The meeting of the Secured Creditors of the Demerged Company was held on Monday, 03.01.2022 at 03:00 P.M., at Bank of Baroda, SME Branch, 28, GIDC Estate, Makarpura, Vadodara, Gujarat – 390 010. The chairman report dated 12.01.2022 is filed

as per Rule 14 of the Companies (CAA) Rules, 2016 on 13.01.2022. The said meeting was attended by 2 (two) Secured Creditors of the Demerged Company entitled to Rs. 3,29,26,494/- (Rupees Three Crores Twenty-Nine Lacs Twenty-Six Thousand Four Hundred and Ninety- Four Only) representing 100% of total value of secured debt of the Demerged Company. In the said meeting of the Secured Creditors, both the Secured Creditors casted their votes in favour and thereby approved and agreed for the proposed scheme of demerger of the Demerged Company into the Resulting Company. Secured Creditors of the Demerged Company have approved the Scheme, by requisite majority of 100% in value and majority in number.

6. By the order dated 16.11.2021, passed in CA (CAA) 47 of 2021, this Tribunal had directed the Petitioner Companies to serve Notice of the Scheme in compliance with Section 230(5) of the Companies Act, 2013 in the Form No. CAA.3 along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, Gujarat and (iii) the Income-tax authorities concerned and (iv) Official Liquidator, stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that the authorities have no representation to make on the proposed Scheme. In compliance with the order dated 16.11.2021, the Petitioner Companies have served notices to the Central Government through the Regional Director, North Western Region, the Registrar of Companies, Gujarat, the concerned Income-tax authorities and the Official Liquidator on 06.12.2021.

7. Thereafter, the Petitioner Companies have jointly filed this petition (second motion) before this Tribunal seeking sanction of the proposed Scheme, along with application bearing I.A. No. 14 of 2022 on 04.02.2022, for condoning delay of 8 *(eight)* days in filing the present application. The delay in filing the second motion application was condoned and the said application being I.A. No. 14 of 2022 was allowed on 16.02.2022.

8. This Tribunal vide an order dated 22.03.2022, admitted the petition and directed for publication of notice of hearing in "Business Standard" in English and "Divya Bhaskar" in Gujarati having circulation in Gujarat, not less than 10 days before the date fixed for final hearing. This Tribunal also directed to issue notice to (a) Central Government through Regional Director (North – Western Region) at Ahmedabad, (b) Registrar of Companies, at Ahmedabad, Gujarat, (c) to the Income Tax Department along with full details of assessing officer and PAN numbers of both the Petitioner Companies with the copy also to the Chief Commissioner of Income Tax Office and (d) the Official Liquidator, Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

9. Pursuant to the order dated 22.03.2022 passed by this Tribunal, the Petitioner Companies have published the notice of hearing of the company petition in "Business Standard" (English) and "Divya Bhaskar" (Gujarati) on 13.04.2022. The affidavit of service, on behalf of the Petitioner Companies, dated 19.04.2022, has been filed confirming the publication of the notice in the

newspapers as directed and also the notice of hearing of the petition being served upon the concerned statutory authorities.

10. In response to the notices served upon the Statutory Authorities, the office of the Regional Director, North-Western Region (**RD**) has filed its representation dated 29.04.2022 (sent to this Tribunal on 04.05.2022*)* wherein the RD had made several observations along with the report of the Registrar of Companies (**RoC**), which are as under:-

i) That as per consideration provided in the scheme, further increase in authorized share capital of the Petitioner Resulting Company will be required since the authorized share capital of the Resulting Company is not sufficient to issue and allot new equity shares of the Resulting Company to the shareholders of the petitioner Demerged Company through this scheme. There is requirement to increase in the authorized capital of the petitioner Resulting Company. The company is required to comply with the relevant provisions of the Companies Act, 2013 for increase in authorized share capital of the Resulting Company.

   To direct the Resulting Company to comply with the provisions of Section 61 of the Companies Act, 2013 and also as to the payment of stamp duty, registration fees etc. and file the relevant e-form with respective Registrar of Companies.

ii) To direct the petitioner companies to undertake the compliance of Section 2 (19AA) of the Income Tax Act in the matter, since this is a Scheme of Demerger.

iii) The petitioner companies have not attached the list of assets and liabilities in this regard pertaining to the proposed demerged undertaking, with the scheme.

   This Tribunal may, therefore, be pleased to direct the petitioner companies to submit the complete list and full details of assets and liabilities which are proposed to be transferred to the Resulting Company through this.

iv) This Directorate has sent letters No. RD (NWR)/230-232/(524)/2021/2732 to 2733 dated 07.12.2021 and RD (NWR)/230-232/(524)/2021/3858 to 3859 dated 22.02.2022 to the Resulting Company and copy endorsed to Demerged Company at their Registered office seeking certain information/documents in the captioned matter. However, both letters sent to Resulting Company Truder Packaging Private Limited have returned by postal authorities with remark "left". It appears that the Resulting Company is not maintaining its registered office in compliance of the Section 12 of the Companies Act, 2013.

In this regard, this Directorate sent a letter no. RD (NWR)/230- 232/(524)/2021/480 dated 29.04.2022 to the ROC Ahmedabad with requested to take necessary action for violation of Section12 of the Companies Act, 2013

v) **Following are the observations of RoC**

(1) The Demerged Company has failed to attach Cash Flow Statement with the Financial Statements/ Balance Sheet as at 31.03.2019 as per the requirement of Section 2(40) read with Section 129 of the Companies Act, 2013. It has also failed to attach the extract of the annual return as form part of Board's report in the prescribed form MGT-9 for the Financial Year 2018-19 as per the requirement of Section 134 read with sub-section (3) of section 92 of the Companies Act, 2013.

(2) The Auditors of Demerged Company has given qualified observations in its Auditor Report regarding Employee Benefit and Fixed Assets verification etc. for the financial year 2017-18, 2018-19 and 2019-20. However, the Board of Directors have not given their explanations in the Director's Report for the respective financial years as per the requirement of Section 134(3)(f) of the Companies Act, 2013.

(3) As per the Annual Return /MGT-7 for the Financial Year 2017-2018, the Demerged Company has 7 Shareholders as well as per the Annual Return /MGT-7 for the Financial Year 2018-2019, the Demerged Company has 3 Shareholders.

(4) Both the applicant companies have not filed application in prescribed e-form GNL-1 under the MCA 21 portal as per the requirement of Section 398 and Section 232 (2)(b) of the Companies Act, 2013 r.w. Rule 7 of Companies (Registration Office And Fees) Rules, 2014.

(5) As per the para 12(a) of the order dated 16.11.2021 passed by this Tribunal, there are 02(two) Equity Shareholders in the Applicant Company No. 1. Whereas as per the last Annual Return/MGT-7 for the Financial Year 2019-20 filed under the MCA21 portal, the Demerged company/applicant Company No.1 does have 03 shareholders. To direct the Demerged Company to place the fact on the record.

(6) As per the order dated 16.11.2021, there are 02 Secured creditors in the Demerged Company/ Applicant Company No. 1 having value of Rs.3,29,26,494/-. Whereas as per the Index of charges available under the MCA 21 portal, the Demerged company is having 02 open charge ID in favor of 01 Secured creditor namely Bank of Baroda. Thus, it is revealed that the Demerged company has failed to file creation of charge as per the requirement of Section 77 of the Companies Act, 2013 r.w. Rule 3 of the Companies (Register of Charges) Rules, 2014.

In this regard, this Tribunal may kindly direct the company to place the fact on record regarding filing of creation of charges as per the requirement of Section 77 of the Companies Act, 2013 r.w. Rule 3 of the Companies (registration of Charges), Rules, 2014.

(7) Necessary Stamp Duty on transfer of property/Assets is to be paid to the respective Authorities before implementation

11. The Petitioner Companies had filed a detailed affidavit dated 25.07.2022 *inter alia* setting out the explanations and/ or various compliances made by the Petitioner Companies pursuant to the observations received from the office of the RD.

i) It is already envisaged that the approval of the

shareholders of the Resulting Company shall be deemed to be their consent/ approval also to the consequential alteration of the Memorandum of Association of the Resulting Company. In view of the same, fresh procedure for approval of shareholders of the Resulting Company shall not be necessary. Further, it is also indicated that the Resulting Company shall file the requisite forms with the RoC for alteration of its authorized share capital and shall pay necessary fees as may be required to be paid in accordance with the Law. That in any case, the Petitioner - Resulting Company shall be bound to pay the requisite amounts of stamp duty, registration fees and shall comply with filing requirements for the same. In view of the same, it is not necessary to issue any further directions.

ii) That compliance of Section 2 (19AA) of the Income Tax Act is already envisaged under the proposed Scheme vide Para C of the proposed Scheme. In view of the same, it is not necessary for this Hon'ble Tribunal to give any further instructions.

iii) That it has been duly envisaged in the proposed Scheme that the assets and liabilities to be transferred to the demerged undertaking/ Resulting Company are detailed in Annexure – 1. However, on account of an inadvertence error, the same has not been annexed along with the proposed Scheme. It is submitted that such inadvertent mistake does not affect the scheme of arrangement and demerger in any manner. Under the circumstances, the

Petitioner Companies hereby urges before this Hon'ble Tribunal to place the list/ details of the assets and liabilities proposed to be transferred to the demerged undertaking/ Resulting Company along with the present Affidavit.

iv) The Resulting Company has not received any observations and/ or directions from the office of the Registrar of Companies, Gujarat. Be that as it may, the Petitioner – Resulting Company undertakes to comply with the directions, if any issued by the RoC in pursuance to *Section 12* of the *Companies Act, 2013,* so far as it may be admissible under the facts and circumstances of the case. It is further submitted that the Petitioner – Resulting Company is bound to maintain the registered office of the Petitioner – Resulting Company in compliance of *Section 12* of the *Companies Act, 2013*.

The explanation given by the petitioners on the observation of the RoC are as under:

(1) During the process of scanning the financial statements and attachment thereof to E–form AOC–4, the pages containing the Cash Flow Statement were missed out and thus, inadvertently and without any *mala fide intention*, the same could not be uploaded in the attachments with E–form AOC–4 for the Financial Year 2018-19.

(2) The provisions pertaining to Secretarial Audit as envisaged under *Section 204* of the *Companies Act, 2013* were not applicable to the Demerged Company since inception to till

date. Thus, any requirement of compliance with respect to the same does not arise at all. Further it is submitted that the auditor of the Demerged Company had not provided any adverse remark in its report for the Financial Years 2017-18, 2018-19 and 2019-20 except some observations which were subject to conditions. Hence, the Demerged Company was not required to include any explanation or comment in the Board's report for the abovementioned financial years. In view whereof, it is submitted that there is no violation of the provisions contained under *Section 134(3)(f)* of the *Companies Act, 2013* read with the Rules made thereunder.

(3) It is agreed and admitted that the Demerged Company has failed to disclose the details pertaining to transfer of shares in E–form MGT–7 for the Financial Year 2018-19 solely owing to a clerical error and without any *mala fide* intention. It is submitted that the Demerged Company declares and undertakes to rectify the default at the earliest and make it good. It is further submitted that the Demerged Company shall be provided reasonable opportunity to rectify a human error occurred while filing the Annual Return in E–form MGT–7 for the Financial Year 2018-19.

(4) It is submitted that both the Petitioner Companies have duly filed E–form GNL–1 before the Registrar of Companies, Gujarat in accordance with the provisions of the Law. In view of the same, it is not necessary to issue any further directions.

(5) It is agreed and admitted that the Demerged Company has failed to disclose the details pertaining to transfer of shares in E–form MGT–7 for the Financial Year 2019-20 solely owing to a clerical error and without any *mala fide* intention. It is submitted that the Demerged Company declares and undertakes to rectify the default at the earliest and make it good. It is further submitted that the Demerged Company shall be provided reasonable opportunity to rectify a human error occurred while filing the Annual Return in E–form MGT–7 for the Financial Year 2019-20. It is submitted that as on 01.04.2021, there are only 2 *(two)* shareholders in the Demerged Company, which fact is duly stated in the present petition.

(6) It is submitted that Demerged Company had borrowed money for a Car Loan from one Secured Creditor namely, M/s. Mahindra and Mahindra Financial Services Limited and at the given time, the Demerged Company had queried the said Secured Creditor for creation of charge for the said Loan. However, as per the communication received from the said Secured Creditor, it was mutually agreed that it was not mandatory to create a charge on MCA Portal for a Car Loan. Therefore, it is submitted that the Demerged Company had not created charge for the said Car Loan in pursuance to the communication made with the said Secured Creditor. Be that as it may, if the circumstances so warrant, the Demerged Company declares and undertakes to rectify the default at the earliest and make it good.

(7) I say and submit that the required/ necessary stamp duty shall be paid as per the applicable rate in accordance with the provisions contained under the *Gujarat Stamp Act.*

12. In view of this affidavit dated 25.07.2022, this Tribunal had called upon the RD and RoC to file a supplementary report, vide an order dated 26.07.2022

13. Subsequent to which, the office of the RD has filed its supplementary report/ representation dated 27.09.2022 *(sent to this Tribunal on 28.09.2022)* along with the report of the RoC and the same is considered as the final report of the RD and RoC in the present matter. That in the said representation dated 27.09.2022 the RD has made the following observations along with the report of the RoC. The details of the observations of the said statutory authorities and response of the Petitioner Companies are as under:

(a) At paragraph no. 4 (v), the RD has reported that the RoC has passed Adjudication Order dated 23.08.2022 u/s 454 of the Companies Act, 2013 against the Company and its Officers for default of Section 12(1) of the Companies Act, 2013 and imposed the penalty on the Company and its officers in default under Section 12(8) of the Companies Act, 2013 read with Section 446B of the Companies Act, 2013.

Responding to the same, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that the Resulting Company has already filed an appeal before the Ld. Regional Director, Western Region, Ahmedabad

under Form No. ADJ *(pursuant to Section 454(5) of the Companies Act, 2013 and Rule 4(1) of the Companies (Adjudication of Penalties) Rules, 2014)* challenging the order dated 23.08.2022 passed by the RoC *inter alia* for setting aside of the impugned order dated 23.08.2022. That the same is pending consideration before the RD and thus, the penalty imposed on the Resulting Company and its officers under Section 12(8) read with Section 446B of the Companies Act, 2013 shall be subject to the outcome of the said appeal. Further, the Resulting Company shall be bound by the order passed in the said appeal by the RD. It is further stated that the Resulting Company is maintaining the registered office at the same address which is mentioned on the portal of Ministry of Corporate Affairs since its inception in compliance of Section 12 of the Companies Act, 2013. Thus, in view of pendency of an appeal before the RD, it is not necessary for this Tribunal to give any further directions.

(b) At paragraph no. 4 (vii), the RD has reproduced the comments of the RoC in response to the additional affidavit dated 25.07.2022 filed by the Petitioner Companies. The adverse comments of the RoC are dealt with as follows by the Petitioner Companies:

(i) <u>Failure to attach Cash Flow Statements:</u>

The RoC has reported that the company has committed the default and confirmed vide its reply dated 22.08.2022 that the pages containing the Cash Flow Statement were missed out and thus, inadvertently and

without any mala fide intention, the same could not be uploaded in the attachments with E-form AOC – 4 for the Financial Year 2018 – 19, which is attracted a violation of Section 134(7)/ 137(3) read with Section 2(4) of the Companies Act, 2013 as the case may be. In view of the above it is evident that the company has not complied with the provisions of Section 134(7)/ 137(3) of the Companies Act, 2013. Therefore, the RoC has submitted that the reply given in the rejoinder affidavit by the Demerged Company is contrary to the provisions of the Companies Act, 2013.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that the Petitioner Companies have duly responded in its additional affidavit dated 25.07.2022 that the pages containing the cash flow statement were inadvertently missed out while scanning the financial statements and attachments thereof. Moreover, the said cash flow statement is duly annexed at Page Nos. 18 and 19 along with the additional affidavit dated 25.07.2022. Further, it is pertinent to submit that the financial statements were duly filed by the Petitioner Companies in accordance with the provisions of the Companies Act, 2013. Thus, an inadvertent error of not attaching the cash flow statement shall not be construed as a violation/ contravention of the provisions contained under Section 134(7)/ 137(3) of the Companies Act, 2013.

(ii) Failure to attach extract of the Annual Return as forming part of Board's report in the prescribed Form MGT – 9 for the Financial Year 2018 – 19:

The RoC has commented that the company has committed the default and confirmed vide its reply dated 22.08.2022 that Company has failed to attach extract of the Annual Return as form part of Board' report in the prescribed form MGT – 9 for the Financial Year 2018-19 on account of a misunderstanding which is attracted a violation of Section 134(7) read with Section 92(3) of the Companies Act, 2013. In view of the above it is evident that the company has not complied with the provisions of the Companies Act, 2013. Therefore, the RoC has submitted that the reply given in the rejoinder affidavit by the Demerged Company is contrary to the provisions of the Companies Act, 2013.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that the said failure had occurred on account of a misunderstanding that the requirement of furnishing the extract of Annual Return in Form MGT – 9 has been dispensed with since the provisions under Section 92(3) of the Companies Act, 2013 were amended with effect from 28.08.2020. However, the Demerged Company has already made good its error by filing Form MGT – 9 at a later stage, which is duly annexed at Page Nos. 20 to 28 along with the additional affidavit dated 25.07.2022. Moreover, the

said extract was also served to the shareholders along with the Board's Report for the Financial Year 2018 – 19. Thus, as such there is no contravention/ violation of the provisions contained under Section 134(7) read with Section 92(3) of the Companies Act, 2013.

(iii) No details with regards to transfer of shares for Financial Year 2018 – 19:

The RoC has commented that as the Company has committed default in its reply, company is required to file afresh e-form MGT-7 for the financial year 2018-19 following the procedure laid down under section 398 of the Companies Act, 2013 read with Rules made thereunder with the Ministry of Corporate Affairs along with requisite fees/ additional fees as applicable. The RoC has prayed for issuing suitable directions to the Demerged Company as deem fit and proper by this Tribunal.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that the Petitioner Companies have duly admitted that there had been a failure on their part to disclose the details pertaining to transfer of shares in E-form MGT – 7 for the Financial Year 2018 – 19 solely owing to a clerical error and without any *mala fide* intention. The Petitioner Companies have also declared and undertaken to rectify the default and make it good at the earliest. Further, it is stated that in the present Scheme, the latest shareholding pattern of

the Petitioner Companies is taken into consideration and hence, the same shall have no bearing in deciding the present case, in as much as the said default can also be made good even after the sanctioning/ approval of the Scheme by this Tribunal. Thus, it is stated that the said issue is not germane to the present proceedings and hence, it is not necessary for this Tribunal to give any further directions.

(iv) Increase in Authorised Share Capital of the Resulting Company:

The RoC has commented that the Resulting Company must be complied with the provisions of Section 61 r/w Section 64 of the Companies Act, 2013 and necessary e-form/ MOA/ AOA under the MCA portal to increase its Authorised Capital should be filed along with payment of Fee/ Additional Fee and necessary Stamp Fee as per the requirement of the aforesaid provisions of the Companies Act, 2013 and Rules made thereunder. The RoC has prayed for issuing suitable directions to the Petitioner Companies in this regard.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that vide Clause 9.2 and 9.3 of the Scheme, it is already envisaged that the approval of the shareholders of the Resulting Company shall be deemed to be their consent/ approval also to the consequential alteration of the Memorandum of Association of the Resulting Company. In view of the

same, fresh procedure for approval of shareholders of the Resulting Company shall not be necessary. Further, it is also indicated that the Resulting Company shall file the requisite forms with the RoC for alteration of its authorised share capital and shall pay necessary fees as may be required to be paid in accordance with the Law. It is stated that in any case, the Resulting Company shall be bound to pay the requisite amounts of stamp duty, registration fees and shall comply with filing requirements for the same. In view of the same, it is not necessary to issue any further directions.

(v) Disparity with regards to No. of Shareholders:

The RoC has commented that the company has committed the default and confirmed vide its reply dated 22.08.2022 so as company is required to file afresh e-form MGT-7 for the financial year 2019-20 following the procedure laid down under Section 398 of the Companies Act, 2013 read with Rules made thereunder with the Ministry of Corporate Affairs along with requisite fees/ additional fees as applicable. The RoC has prayed for issuing suitable directions to the Demerged Company as deem fit and proper by this Tribunal.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that there are only 2 shareholders in the Demerged Company and the same

is taken into consideration in the present Scheme. That the Petitioner Companies have duly admitted that there had been a failure on their part to disclose the details pertaining to transfer of shares in E-form MGT – 7 for the Financial Year 2019 – 20 solely owing to a clerical error and without any *mala fide* intention. The Petitioner Companies have declared and undertaken to rectify the default and make it good at the earliest. Further, it is stated that in the present Scheme, the latest shareholding pattern of the Petitioner Companies is taken into consideration and hence, the same shall have no bearing in deciding the present case, in as much as the said default can also be made good even after the sanctioning/ approval of the Scheme by this Tribunal. Thus, it is stated that the said issue is not germane to the present proceedings and hence, it is not necessary for this Tribunal to give any further directions.

(vi) Non-registration of Charge:

The RoC has commented that as per the requirement of Section 77 of the Companies Act, 2013, it shall be the duty of company creating a charge within or outside India, on its property or assets (including motor vehicle), situated in or outside India, to register the particulars of the charge with the Registrar within thirty days of its creation. In the instant case of Demerged Company, the charge so created would be considered as 'unregistered' and does not give any such rights to the charge holder, which attracted a violation

of Section 77 of the Companies Act, 2013. Therefore, the RoC has submitted that the reply given in the rejoinder affidavit by the Demerged Company is contrary to the provisions of the Companies Act, 2013.

In response to the said observation, the Petitioner Companies in the reply/ further affidavit dated 17.11.2022 have stated that the Demerged Company had borrowed money for a Car Loan from one Secured Creditor namely, M/s. Mahindra and Mahindra Financial Services Limited and at the given time, the Demerged Company had queried the said Secured Creditor for creation of charge for the said Loan. However, as per the communication received from the said Secured Creditor, it was mutually agreed that it was not mandatory to create a charge on MCA Portal for a Car Loan. Therefore, the Demerged Company had not created charge for the said Car Loan in pursuance to the communication made with the said Secured Creditor. Be that as it may, if the circumstances so warrant, the Demerged Company has declared and undertaken to rectify the default at the earliest and make it good. Also, it is stated that the said issue shall have no bearing in deciding the present case, in as much as the said default can also be made good even after the sanctioning/ approval of the Scheme by this Tribunal. Thus, it is stated that the said issue not being germane to the present proceedings, it is not necessary for this Tribunal to give any further directions.

14. The Official Liquidator (**OL**) has filed his observations dated 30.06.2022 *(sent to this Tribunal on 01.07.2022)* wherein the OL has made few observations which are enumerated herein below along with the response of the Petitioner Companies:

(a) At paragraph no. 17, the OL has observed that there is no specific clause mentioned with regards to the effect of the Scheme on the employees of the Demerged Undertaking/ unit.

In response to the said observation, the Petitioner Companies in the reply/ common additional affidavit dated 25.07.2022 have stated that it has been already envisaged at Clause 1.2(i) of the proposed Scheme that the Demerged Undertaking/ Resulting Company shall include all the employees of the Demerged Company employed/ engaged in the business unit 1 pertaining to manufacturing of Sleeve and Carrybag business of the Demerged Company. Thus, the existing employees of the Demerged Company and their employment shall be continued after the approval of scheme of arrangement and demerger. In view of the same, it is stated that it is not necessary to issue any further directions.

(b) At paragraph nos. 21 and 22, the OL has prayed for directions to be issued to the Demerged Company to preserve its books of accounts, papers and records and shall not be disposed of without prior permission of Central Government as per the provisions of Section 239 of

the Companies Act, 2013. Further, the OL has prayed for directions to be issued to ensure Statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Demerged Company shall not be absolved from any of its Statutory liabilities, in any manner.

In response to the said observations, the Petitioner Companies in the reply/ common additional affidavit dated 25.07.2022 have duly undertaken to comply with all the applicable Laws for the time being in force.

(c) At paragraph no. 23, the OL has prayed for directions to be issued to the Demerged Company to pay cost of proceedings of Rs. 10,000/- or such amount as may be determined by this Tribunal towards expenses to the Office of OL by way of Demand Draft/ Banker's cheque only drawn on any nationalized scheduled Bank in favour of the OL, payable at Ahmedabad.

In response to the said observation, the Petitioner Companies in the reply/ common additional affidavit dated 25.07.2022 have duly undertaken to pay the cost of proceeding and related office expenses of the office of the OL for submitting the said report, that may be considered appropriate by this Tribunal.

(d) At paragraph nos. 24 and 25, the OL has prayed for directions to be issued to the Petitioner Companies to lodge a certified copy of order along with the scheme, with the concerned Superintendent of Stamps for the purpose of

adjudication of stamp duty payable, if any. Further, the OL has prayed for directions to be issued to comply with provision of Section 232(5) of the Companies Act, 2013 with respect to filing of certified copy of order sanctioning scheme with RoC within 30 days from date of passing of order.

In response to the said observations, the Petitioner Companies in the reply/ common additional affidavit dated 25.07.2022 have once again duly undertaken to comply with all the applicable Laws for the time being in force.

15. The Income-tax Department has filed its report dated 26.07.2022 stating that there are no outstanding dues in relation to the Petitioner Companies. Further, no other observations have been made by the Income-tax Department. Moreover, during the course of hearing, the counsel of the Income-tax Department has stated that they have no objection if the said Scheme is sanctioned by this Tribunal.

16. The Petitioner Companies have placed on record the valuation report obtained from an Independent – Registered Valuer.

17. The Petitioner Companies have also filed their audited financial statements as on 31st March 2020.

18. The certified copies of Board Resolution of the Petitioner Companies approving the Scheme of Demerger is annexed to the petition. At the first motion petition, an affidavit is filed by Mr. Yogesh Shahani, being authorised representative of the Petitioner

Companies stating that there is no investigation instituted or pending in relation to the Petitioner Companies under Chapter XIV of the Companies Act, 2013 or under the corresponding provisions of Sections 235 to 251 of the Companies Act, 1956. Also, no winding up proceedings or Insolvency Petition have been filed or pending against the Petitioner Companies.

19. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, the Petitioner Companies have placed on record the certificate of statutory auditor confirming that the accounting treatment envisaged under the Scheme of Demerger is in compliance with the applicable accounting standards notified by the Central Government in Section 133 of the Companies Act, 2013.

20. Both the Petitioner Companies are substantially under the same management and are closely held companies. Both the Companies are engaged in related types of and/ or nature of activities. The demerger of the undertaking of unit pertaining to manufacturing of sleeve and carrybag business of the Demerged Company would broaden the capital base of the Resulting Company which can diversify into various other profitable businesses keeping in mind the changed economic and business conditions and opportunities in India. Further, due to developments of the factors and entries of second line of new generation of the key promoters, the re-organization has become essential to ensure better operational management, accelerated growth of individual units, new products introductions which will ensure higher returns to the shareholders, creditors, employees and is also in general public interest and focuses on the key activities. The demerger would

enable greater/ enhanced focus of the management in their business whereby facilitating the management to efficiently exploit opportunities for its businesses.

21. Heard Ld. Counsel Mr. Jaimin Dave for the Petitioner Companies also gone through the records.

22. Considering the above affidavits in reply filed by the Petitioner Companies, the observations made by the Regional Director in his representations dated 29.04.2022 followed by supplementary report dated 27.09.2022, the representation of the Official Liquidator dated 30.06.2022 and the report of the Income Tax Department stands satisfied.

23. On the basis of the above facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the Petitioner Companies. We are of the considered view that the proposed Scheme of Demerger is bona fide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP (CAA) 14 of 2022 is allowed. The Scheme envisages demerger of the undertaking of Business Unit 1 pertaining to manufacturing of sleeve and carrybag business of Bullion Flexipack Private Limited into Truder Packaging Private Limited. It is declared that the said sanctioned scheme shall be binding on the Petitioner Companies and their shareholders, creditors and all concerned under the scheme.

24. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioners.

25. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/ compliance with any other requirement which may be specifically required under any law.

26. The scheme is approved with the following directions:

ORDER

(i) The Scheme of Demerger as annexed herewith as "Annexure A" is hereby sanctioned and it is declared that the same shall be binding on the Demerged Company, the Resulting Company, and their Shareholders and Creditors and all concerned under the Scheme.

(ii) All the properties annexed herewith in the schedule as "Annexure B", rights and powers of the Demerged Company specified in the schedule hereto and all the other property, rights and powers of the Demerged Company be transferred without any further act or deed to the Resulting Company and accordingly the same shall, pursuant to Section 232 of the Act, be transferred to and vested in the Resulting Company for

all the estates and interest of the Demerged Company, therein but subject nevertheless to all charges now affected the same, if any.

(iii) Consideration

(a) Upon the coming into effect of this Scheme and in consideration of the transfer and vesting of the Demerged Undertaking into Truder Packaging Private Limited (TPPL) pursuant to the provisions of this Scheme, TPPL shall, without any further act or deed, issue and allot to each shareholder of Bullion Flexipack Private Limited (BFPL), whose name is recorded in the register of members and records of the depositories as members of BFPL, on the Record Date 4,78.285 (Four Lacs Seventy Eight Thousand Two Hundred and Eighty Five only) equity shares of Rs. 10/- (Rupees Ten Only) each of TPPL credited as fully paid up for 600000 (Six Lacs) equity shares of Rs. 10/- (Rupees Ten Only) each held by such shareholder in BFP PL (New Equity Shares). The ratio (0.797:1) in which equity shares of TP PL are to be issued and allotted to the shareholders of BFPL is referred to as the "**Share Entitlement Ratio".** It is clarified that no cash consideration shall be paid by TPPL to BFPL or its shareholders.

(b) The New Equity Shares to be issued and allotted as provided in Clause 81 above shall be subject to the provisions of the Memorandum and Articles of Association of TPPL and shall rank *pari-passu* in all respects with the then existing equity shares of TPPL after the Record Date including with respect to dividend, bonus entitlement, rights shares entitlement, voting rights and other corporate benefits.

(c) In case any shareholder's shareholding in BFPL is

such that such shareholder becomes entitled to a fraction of an equity share of TPPL, TPPL shall not issue fractional share certificates to such shareholder but shall consolidate such fractions and issue and allot the consolidated shares directly to a trustee nominated by the Board of Directors of TPPL in that behalf, who shall sell such shares in the market at such price or prices and on such time or times as the trustee may in its sole discretion decide and on such sale, shall pay to TPPL, the net sale proceeds (after deduction of applicable taxes and other expenses incurred), whereupon TPPL shall, subject to withholding tax, if any, distribute such sale proceeds to the concerned shareholders of BFPL in proportion to their respective fractional entitlements.

(d) The New Equity Shares to be issued pursuant to Clause 8.1 above shall be issued in Paper form by TP PL, unless otherwise notified in writing by the shareholders of BFPL to TPPL on or before such date as may be determined by the Board of Directors of BFPL. In the event that such notice has not been received by TPPL in respect of any of the shareholders of BFPL, the New Equity Shares shall be issued to such shareholders in Paper form provided that the shareholders of TPPL. In the event that TPPL has received notice from any shareholder that the New Equity Shares are to be issued in physical form or if any shareholder has not provided the requisite details relating to his/hers/its account with a depository participant or other confirmations as may be required or if the details furnished by any shareholder do not permit electronic credit of the shares of TP PL, then TPPL shall issue New Equity Shares in physical form to such shareholder or shareholders.

(e) The New Equity Shares issued and/or allotted pursuant to Clause 8.1, in respect of such of the equity shares of BFPL which are held in abeyance under the provisions of Section 126 of the Act shall, pending settlement of dispute by order of court or otherwise, be held in abeyance by TPPL.

(f) The New Equity Shares issued pursuant to Clause 8.1, which TPPL is unable to allot due to applicable Laws (including, without limitation, the non-receipt of approvals of Governmental Authority as required under applicable Law) or any regulations or otherwise shall, pending allotment, be held in abeyance by TPPL and shall be dealt with in the manner as may be permissible under the applicable Law and deemed fit by the Board of Directors of TPPL including to enable allotment and sale of such New Equity Shares to a trustee as mentioned in Cause 8.3 above and thereafter make distributions of the net sales proceeds in lieu thereof (after deduction of taxes and expenses incurred) to the eligible shareholders of BFPL, in proportion to their entitlements as per the process specified in Clause 8.3 above. If the above cannot be effected for any reason, TP PL shall ensure that this does not delay implementation of the Scheme; and shall, take all such appropriate actions as may be necessary under applicable Laws. TPPL and/or the depository shall enter into such further documents and take such further actions as may be necessary or appropriate in this regard and to enable actions contemplated therein.

(g) In the event of there being any pending share transfers, whether lodged or outstanding, of any shareholders of BFPL, the Board of Directors of BFP PL shall be empowered prior to or even

subsequent to the Record Date, to effectuate such transfers in BFPL as if such changes in registered holders were operative as on the Record Date, in order to remove any difficulties arising to the transferors of the shares in relation to the shares issued by TPPL. The Board of Directors of BFPL shall be empowered to remove such difficulties that may arise in the course of implementation of this Scheme and registration of new shareholders in TP PL on account of difficulties faced in the transition period.

(h) The issue and allotment of the New Equity Shares in terms of this Scheme shall be deemed to have been carried out as if the procedure laid down under Section 62 of the Act and any other applicable provisions of the Act have been complied with.

(i) TPPL shall if and to the extent required to, apply for and obtain any approvals from the Governmental Authorities including Reserve Bank of India, for the issue and allotment of New Equity Shares by TPPL to the non-resident equity shareholders of BFPL.

There shall be no change in the shareholding pattern or control in TPPL between the Record Date and the listing of the equity shares on the Stock Exchanges.

(iv) The Business Unit 1 pertaining to manufacturing of sleeve and carry bag business of the Demerged Company shall, together with all its property, rights and powers be transferred without further act or deed to the Resulting Company and accordingly the same shall, pursuant to Section 232 of the Act, stand transferred to and vest in the Resulting Company for all the estate and interest of the Business Unit 1.

(v) All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Business Unit 1 shall stand transferred to and vest in the Resulting Company, without any further act or deed. The Resulting Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Resulting Company.

(vi) All the liabilities of the Business Unit 1 of the Demerged Company be transferred, without further act or deed, to the Resulting Company and accordingly the same shall pursuant to Section 230 and 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Resulting Company.

(vii) All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Business Unit 1 of the Demerged Company, shall stand transferred to and vested in the Resulting Company and be in full force and effect in favour of the Resulting Company and may be enforced by or against it as fully and effectually against the Resulting Company.

(viii) All taxes paid or payable by the Business Unit 1 of the Demerged Company including existing and future incentives, un-availed credits and exemptions, benefit of carried forward losses and other statutory benefits, shall be available to and vest in the Resulting Company.

(ix) All proceedings now pending by or against the Business Unit 1 of the Demerged Company shall be continued by or against the Resulting Company.

(x) All employees in the service of the Business Unit 1 of the Demerged Company shall be deemed to have become the employees and the staff of the Resulting Company on date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on terms and conditions no less favourable than those on which they were/ are engaged, as on the Effective Date.

(xi) The Petitioner Companies are directed to lodge a copy of this Order, the approved Scheme and the Schedule of Assets of the Demerged Company duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

(xii) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xiii) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

(xiv) The legal fees/ expenses of the office of the Regional Director are quantified at Rs.10,000/- each in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Demerged Company.

(xv) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the Demerged Company. The said fees to the Official Liquidator shall be paid by the Demerged Company.

(xvi) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

(xvii) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order along with Scheme immediately.

27. The Company Petition CP (CAA) No. 14 of 2022 connected with CA (CAA) No. 47 of 2021 is allowed and stands disposed of, in terms of the above order.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

PRAVEEN GUPTA
MEMBER (JUDICIAL)

Sudha-Steno

Annexure - A

ANNEXURE - E

COMPOSITE SCHEME OF ARRANGEMENT

AMONG

BULLION FLEXIPACK PRIVATE LIMITED

AND

TRUDER PACKAGING PVT LTD

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(UNDER SECTIONS 230 to 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013)

PREAMBLE

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

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This Scheme (*as defined hereinafter*) is presented under Sections 230 to 232 read with Section 66 and other applicable provisions of the Companies Act, 2013 and rules framed thereunder for demerger of Demerged Undertaking of Bullion Flexipack Private Limited (herein after referred as BFP PL) into Truder Packaging Private Limited (*as defined hereinafter TP PL*) and for matters consequential, supplemental and/or otherwise integrally connected therewith.

A. **INTRODUCTION**

a) BFP PL ("Demerged Company") was incorporated on 04th day of January 2001, as a Private Limited company with the Registrar of Companies, Gujarat under the provisions of the Companies Act, 1956 with Corporate Identification Number U25202GJ2001PTC039141. The registered office of BFP PL is situated at 328/15, Jarod Rasulabad Road, Near Referrel Hospital, Off Baroda – Halol Express Highway, Jarod, Baroda - 391510, Gujarat, India.

The Object of BFP PL is to carry on the business of manufacture of plastic packaging products including pouches/ purses, bottles, containers, cards, jerry cans, barrels, ampules, collapsible tubes, crates, cans, bed, woven bags, boxes, drums, carboys, sleeve, labels, vessels, corrugated boxes, tins, containers, cartons, caps, liners, wrappers, belts, corks tops, with or without printing used for industrial, commercial, domestic and consumers packaging of all kinds, types, nature and description made from all kinds of plastic, nylon, polyethylene, polypropylene, high or low density polyethylene, PVC thermoplastic and thermosetting materials and polyethylene terephthalate (pet), H.M., papers, craft papers, boards, card boards, wood and plywood materials, jute, cloth, rubber, leather, synthetic materials, glasses, plates, stainless scrap material by blow moulding, compression, vacuum forming, vacuum metalizing, fabrications, coating, finishing, spraying, calendering, hot melt coating and dipping methods.

TP PL ("Transferee Company"). was incorporated on 09th day of April 2018, a Private company with the Registrar of Companies, Gujarat under the provisions of the Act with Corporate Identification Number U25209GJ2018PTC101691. The registered office of TP PL is situated at 437/A, GIDC, Makarpura, Baroda - 390010, Gujarat, India.

The object of TP PL is to carry on the business of manufacture of plastic packaging products including Laminated pouches, metalizing plants, BOPP pouches, Innovative pouches, Cast PVC/PETg making plant, paper bags, e-shopping bags, PE tubes, Laminated tubes, Sticker labels, shrink sleeve labels, In-mould labels, Heat transfer labels, wraparound labels, printing cylinders, flexo printing plates, cartons, bottles, containers, cards, jerry cans, barrels, ampules, collapsible tubes, crates, woven bags, boxes, drums, carboys, tin containers, caps, liners, wrappers with or without printing used for industrial commercial, domestic and consumers packaging of all kinds, types nature and description made from all kinds of plastic, nylon, polyethylene, polypropylene, high or low density polyethylene, PVC thermoplastic and thermoforming materials and polyethylene terephthalate (pet), H.M., papers, craft papers, boards, card boards, wood and plywood materials, jute, cloth, rubber, leather, synthetic materials, glasses, plates, vacuum forming, vacuum metalizing, fabrications, coating, finishing, spraying, calendering, hot melt coating and dipping methods.

B. **RATIONALE FOR THE SCHEME**

(i) Due to developments of the factors, entries of second line of new generation of the key promoters the re-organization has become essential to ensure better operational management, accelerated growth of individual units, new products introductions which will ensure higher returns to the shareholders, creditors, employees and

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is also in general public interest, and focus on the key activities hence, founder directors have taken decision for separation into demerger.

(iii) The segregation would enable greater/enhanced focus of the management in their business whereby facilitating the management to efficiently exploit opportunities for its businesses.

(iii) It is clarified that the proposed demerger will create enhanced value for shareholders and allow a focused strategy and specialization for sustained growth, which would be in the best interest of all the stakeholders and the persons connected with the aforesaid companies.

(iv) The demerger will also provide scope for independent collaboration and expansion.

(v) The demerger will increase employment opportunities in a separate segment.

C. TREATMENT OF THE SCHEME FOR THE PURPOSES OF INCOME-TAX ACT, 1961

The provisions of this Scheme have been drawn up to comply with the conditions relating to "Demerger" as defined under Section 2(19AA) of the Income-tax Act, 1961. If, at a later date, any of the terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of Section 2(19AA) of the Income-tax Act, 1961 including as a result of an amendment of Law or the enactment of a new legislation or for any other reason whatsoever, the provisions of Section 2(19AA) of the Income-tax Act, 1961, or a corresponding provision of any amended or newly enacted Law, shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(19AA) of the Income-tax Act, 1961. Such modification(s) will, however, not affect the other provisions of the Scheme.

D. PARTS OF THE SCHEME

The Scheme is divided into the following parts:

1. Part A deals with definitions, interpretation and share capital;
2. Part B deals with demerger of Manufacturing of Sleeve business and carry bag business of BFP PL and its vesting in GP PL;
3. Part C deals with treatment of remaining Machinery and Net current Assets and also BFP PL;
4. Part D deals with general terms and conditions that would be applicable to the Scheme.

PART 2

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DEFINITIONS, INTERPRETATION AND SHARE CAPITAL

1. **DEFINITIONS**

In this Scheme, the following words and expressions shall, unless the context requires otherwise, have the following meanings ascribed to them:

1.1 **"Act"** means the Companies Act, 2013 and rules and regulations made thereunder as may be applicable including any statutory modifications, re-enactments or amendments thereof.

1.2 **"Demerged Undertaking"** shall mean the Business Unit 1 (as mentioned in Annexure 1) pertaining to manufacturing of Sleeve and carrybag business of BFP PL, alongwith all the related assets and liabilities on a going concern basis. And shall includes:

(a) all immovable properties, if any, i.e. land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) currently being used for the purpose of and in relation to the Business unit 1 (as mentioned in Annexure 1) and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interest in connection with the said immovable properties;

(b) all assets, as are movable in nature pertaining to and in relation to the Business unit 1 (as mentioned in Annexure 1), whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal (including electrical fittings, furniture, fixtures, appliances, accessories, office equipments, communication facilities, installations and inventory), actionable claims, current assets, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Governmental Authority, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees and tax related assets, including but not limited to goods and service tax input credits, CENVAT credits, entry tax credits or set-offs, advance tax, tax deducted at source and tax refunds;

(c) all permits, licenses, permissions including municipal permissions, right of way, approvals, clearances, consents, benefits, registrations, rights, entitlements, credits, certificates, awards, sanctions, allotments, quotas, no objection certificates, exemptions, concessions, subsidies, liberties and advantages including those relating to privileges, powers, facilities of every kind and description of whatsoever nature and the benefits thereto that pertain exclusively to the Business unit 1 (as mentioned in Annexure 1);

(d) all contracts, agreements, purchase orders/service orders, operation and maintenance contracts, memoranda of understanding, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, minutes of meetings, bids, tenders, expression of interest, letter of intent, hire and purchase arrangements, lease/licence agreements, tenancy rights, agreements/panchnamas for right of way, equipment purchase agreements, agreement with customers, purchase and other agreements with the supplier/manufacturer of goods/service providers, other arrangements, undertakings, deeds, bonds, schemes, concession agreements, insurance covers and claims, clearances and other instruments of

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whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits thereunder pertaining to the Business unit 1 (as mentioned in Annexure 1);

(e) all applications (including hardware, software, licenses, source codes, para-meterisation and scripts), registrations, goodwill, licenses, trade names, service marks, copyrights, patents, domain names, designs, intellectual property rights (whether owned, licensed or otherwise, and whether registered or unregistered), trade secrets, research and studies, technical knowhow, confidential information and all other rights of whatsoever description and nature that pertain exclusively to the Business unit 1 (as mentioned in Annexure 1);

(f) all rights to use and avail telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interests held in trusts, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights, easements, liberties and advantages of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and in control of or vested in or granted in favour of or enjoyed by BFP PL pertaining to or in connection with or relating to BFP PL in respect of the Business unit 1 (as mentioned in Annexure 1)and all other interests of whatsoever nature belonging to or in the ownership, power, possession or control of or vested in or granted in favour of or held for the benefit of or enjoyed by BFP PL and pertaining to the Business unit 1 (as mentioned in Annexure 1);

(g) all books, records, files, papers, engineering and process information, software licenses (whether proprietary or otherwise), test reports, computer programmes, drawings, manuals, data, databases including databases for procurement, commercial and management, catalogues, quotations, sales and advertising materials, product registrations, dossiers, product master cards, lists of present and former customers and suppliers including service providers, other customer information, customer credit information, customer/supplier pricing information, and all other books and records, whether in physical or electronic form that pertain to the Business unit 1 (as mentioned in Annexure 1);

(h) all debts, liabilities including contingent liabilities, duties, taxes and obligations of BFP PL pertaining to the Business unit 1 (as mentioned in Annexure 1)and/or arising out of and/or relatable to the Business unit 1 (as mentioned in Annexure 1)including:

i. the debts, liabilities, duties and obligations of BFP PL which arises out of the activities or operations of the Business unit 1 (as mentioned in Annexure 1);

ii. specific loans and borrowings raised, incurred and utilized solely for the activities or operations of or pertaining to the Business unit 1 (as mentioned in Annexure 1);

iii. in cases other than those referred to in Sub-Clause i. or Sub-Clause ii. above, so much of the amounts of general or multipurpose borrowings, if any, of BFP PL, as stand in the same proportion which the value of the assets transferred pursuant to the Demerger bears to the total value of the assets of BFP PL immediately prior to the Effective Date;

(i) all employees of BFP PL employed/engaged in the Business unit 1 (as mentioned in Annexure 1) as on the Effective Date; and

(j) all legal or other proceedings of whatsoever nature that pertain to the Business unit 1 (as mentioned in Annexure 1).

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Explanation:

In case of any question that may arise as to whether any particular asset or liability and/or employee pertains or does not pertain to the Business unit 1 (as mentioned in Annexure 1) or whether it arises out of the activities or operations of the Business unit 1 (as mentioned in Annexure 1), the same shall be decided by mutual agreement between Board of Directors of BFP PL and TP PL.

1.3 **"Demerged Company"** means BFP PL, a Private company incorporated with Company Limited by Shares governed under the provisions of the Companies Act, 2013 with its registered office at Plot No. 328/15, Jarod Rasulabad Road, Baroda- Halol Express Highway, Near Referral Hospital, Jarod-391510, Gujarat, India.

1.4 **"Resulting Company"** means TP PL, a Private company incorporated with Company Limited by Shares governed under the provisions of the Companies Act, 2013 with its registered office at 437/A, GIDC, Makarpura, Baroda-390010, Gujarat, India.

1.5 **"Appointed Date"** means 01.04.2021 or such other date as may be approved by National Company Law Tribunal or any other appropriate Authority.

1.6 **"Board of Directors"** means the respective Board of Directors of the each of the under the Scheme and shall include any committee or sub-committee thereof constituted or appointed and authorised for the purpose of matters pertaining to this scheme and any other matter relating thereto.

1.7 **"GST"** means Goods and Service Tax.

1.8 **" Effective Date"** means the last date of compliance of the following:-

(a) The order of the National Company Law Tribunal ("NCLT"), sanctioning the Scheme and transfer and vesting of the assets and liabilities under Section 230 and related provisions of the Act, is filed in the office of the Registrar of Companies, Mumbai by the Transferor Company and each of the Resulting companies;

(b) References in this Scheme of the date of "coming into effect of this Scheme" or "this Scheme becoming effective" shall mean the Effective Date.

1.9 **"Encumbrance"** or **"Encumber"** shall mean any: (i) encumbrance including without limitation any security interest, claim, mortgage, pledge, charge, hypothecation, lien, lease, assignment, deed of trust, title retention, deposit by way of security, beneficial ownership (including usufruct and similar entitlements), or any other similar interest held by the third person; (ii) security interest or other encumbrance of any kind securing, or conferring any priority of payment in respect of, any obligation of any person, including without limitation any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security under applicable Law; (iii) right of pre-emption, right of first offer, or refusal or transfer restriction in favour of any person; and/or (iv) any adverse claim as to title, possession or use.

1.10 **"Founder Directors"** shall mean (i) Mr. Nari Chandiram Shahani (hereinafter referred as NCS), and Mr. Yogesh Chandiram Shahani (hereinafter referred as YCS)

1.11 **"Governmental Authority"** shall mean any national, state, provincial, local or similar government, governmental, statutory, regulatory or administrative authority, government department, agency, commission, board, branch,

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tribunal or court or other entity authorized to make Laws, rules, regulations, standards, requirements, procedures or to pass directions or orders having the force of Law, or any non-governmental regulatory or administrative authority, body or other organization to the extent that the rules, regulations and standards, requirements, procedures or orders of such authority, body or other organization have the force of Law, or any stock exchange of India.

1.12 **"Applicable Law"** shall mean any statute, law, regulation, ordinance, rule, judgment, notification, rule of common law, order, decree, bye-law, approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Governmental Authority having jurisdiction over the matter in question.

1.13 **"NCLT"** or **"The Tribunal"** means the National Company Law Tribunal, Bench at Ahmedabad, which has jurisdiction in relation to BFP PL and TP PL.

1.14 **"Record Date"** means the date to be fixed by the Board of Directors or a committee thereof of the Demerged Company for the purpose of determining the names of the members of the Demerged Company who would be entitled to receive the shares of the Resulting Company.

1.15 **"Remaining Undertaking"** means all business activities of the Demerged Company other than the Demerged Undertaking.

1.16 **"RoC"** means the Registrar of Companies, Gujarat.

1.17 **"Scheme"** "Scheme of Arrangement" or "Scheme" or "this Scheme" means this Composite Scheme of Arrangement made under Sections 230 to 232 and applicable provisions of the Act, as amended/modified, from time to time.

1.18 **"Shareholders"** means the persons registered as holders of Equity Shares of the Companies concerned.

1.19 The capitalised terms which are used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, by-laws, as the case may be, including any statutory modification or re-enactment thereof, from time to time.

2. SHARE CAPITAL

2.1 The share capital of Bullion Flexipack Private Limited as on 31.12.2020 was as under:

Share Capital	Amount in Rupees
Authorised Share Capital	
6,00,000 Equity Shares of Rs. 10/- each	60,00,000
TOTAL	60,00,000
Issued, Subscribed and Paid-Up Share Capital	
6,00,000 Equity Shares of Rs. 10/- each fully paid-up	60,00,000
TOTAL	60,00,000

2.2 The share capital of Truder Packaging Private Limited as on 31.12.2020 was as under:

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Share Capital	Amount in Rupees
Authorized Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
TOTAL	1,00,000
Issued, Subscribed and Paid-Up Share Capital	
10,000 Equity Shares of Rs. 10/- each fully paid up	1,00,000
TOTAL	1,00,000

PART B

DEMERGER OF DEMERGED UNDERTAKING OF BULLION FLEXIPACK PRIVATE LIMITED AND ITS VESTING IN TRUDER PACKAGING PRIVATE LIMITED

3. **Transfer of Assets**

3.1 Upon the coming into effect of this Scheme and with effect from the Appointed Date, the Manufacturing of Sleeve and carrybag business (including all the estate, assets, rights, claims, title, interest and authorities including accretions and appurtenances of the Demerged Undertaking shall, subject to the provisions of this Clause 3 in relation to the mode of transfer and vesting and pursuant to Sections 230 to 232 of the Act and without any further act or deed, be demerged from BFP PL and be transferred to and vested in and be deemed to have been demerged from BFP PL and transferred to and vested in TP PL as a going concern so as to become as and from the Appointed Date, the estate, assets, rights, claims, title, interest and authorities of TP PL, subject to the provisions of this Scheme in relation to Encumbrances in favour of banks and/or financial institutions.

3.2 In respect of such of the assets of the Demerged Undertaking as are movable in nature or are otherwise capable of transfer by delivery of possession or by endorsement and delivery, the same shall be so transferred by BFP PL, upon the coming into effect of this Scheme, and shall become the property of TP PL as an integral part of the Demerged Undertaking with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 of the Act without requiring any deed or instrument of conveyance for transfer of the same, subject to the provisions of this Scheme in relation to Encumbrances in favour of banks and/or financial institutions.

3.3 In respect of movables other than those dealt with in Clause 3.2 above including sundry debts, receivables, bills, credits, loans and advances, if any, whether recoverable in cash or in kind or for value to be received, bank balances, investments, earnest money and deposits with any Governmental Authority, quasi- governmental authority, local or other authority or body or with any company or other person, the same shall on and from the Appointed Date stand within BFP PL without any notice or other intimation to the debtors.

3.4 In respect of such of the assets belonging to the Demerged Undertaking other than those referred to in Clause 3.2 and 3.3 above, the same shall, as more particularly provided in Clause 3.1 above, without any further act, instrument or deed, be demerged from BFP PL and transferred to and vested in TP PL upon the coming into effect of this Scheme and with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 of the Act. For the purpose of giving effect to the vesting order passed under Section 232 of the Act in respect of the Scheme, TP PL shall be entitled to exercise all the rights and privileges and be liable to pay all taxes and charges and fulfil all its obligations, in relation to or applicable to all such immovable properties, including

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mutation and/or substitution of the title to, or interest in the immovable properties which shall be made and duly recorded by the appropriate authority(ies) in favour of TP PL pursuant to the sanction of the Scheme by the NCLT and upon the effectiveness of this Scheme in accordance with the terms hereof without any further act or deed to be done or executed by BFP PL and/or TP PL. It is clarified that TP PL shall be entitled to engage in such correspondence and make such representations, as may be necessary for the purposes of the aforesaid mutation and/or substitution.

Notwithstanding any provision to the contrary, from the Effective Date and until the owned properties, leasehold properties and related rights thereto, license/right to use the immovable property, tenancy rights, liberties and easial status are transferred, vested, recorded, effected and/or perfected, in the record of the appropriate authority in favour of TP PL. TP PL is deemed to be authorised to carry on the business in the name and style of BFP PL under the relevant agreement, deed, lease and/or license, as the case may be, and TP PL shall keep a separate account of such transactions

3.4 All assets, rights, title, interest and investments of BFP PL in relation to the Demerged Undertaking shall also, without any further act, instrument or deed stand transferred to and vested in and be deemed to have been transferring to and vested in TP PL upon the coming into effect of this Scheme and with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 of the Act.

3.5 Without prejudice to the generality of the foregoing, upon the effectiveness of this Scheme, TP PL will be entitled to all the intellectual property rights of BFP PL in relation to the Demerged Undertaking. TP PL may take such actions as may be necessary and permissible to get the same transferred and/or registered in the name of TP PL.

3.6 Assets acquired by BFP PL after the Appointed Date but prior to the Effective Date pertaining to the Demerged Undertaking shall upon the coming into effect of this Scheme also without any further act, instrument or deed stand transferred to and vested in or be deemed to have been transferred to or vested in TP PL upon the coming into effect of this Scheme.

3.7 For the avoidance of doubt, upon the coming into effect of this Scheme, all the rights, title, interest and claims of BFP PL in any leasehold/licensed properties in relation to the Demerged Undertaking shall also be transferred to and vested in or be deemed to have been transferred to and vested in TP PL automatically without requirement of any further act or deed.

3.8 On and from the Effective Date, and thereafter, TP PL shall be entitled to operate the bank accounts of BFP PL, in relation to or in connection with the Demerged Undertaking and realize all monies and complete and enforce all pending contracts and transactions and to accept stock returns and issue credit notes in relation to or in connection with the Manufacturing of Demerged Undertaking of BFP PL, in the name of TP PL in so far as may be necessary until the transfer of rights and obligations of the Demerged Undertaking to TP PL under this Scheme have been formally given effect to under such contracts and transactions.

3.9 For the avoidance of doubt and without prejudice to the generality of the applicable provisions of the Scheme, it is clarified that:

(a) With effect from the Effective Date and till such time that the name of bank accounts of BFP PL, in relation to or in connection with the Demerged Undertaking has been replaced with that of TP PL.

(b) TP PL shall be entitled to operate the bank account of BFP PL, in relation to or in connection with the Demerged Undertaking, in the name of BFP PL in so far as may be necessary.

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c) All cheques and other negotiable instruments, payment orders received or presented for encashment, which is in the name of BFP PL, in relation to or in connection with the Demerged Undertaking, after the Effective Date shall be accepted by the bankers of TP PL and credited to the account of TP PL, if presented by TP PL.

d) TP PL shall be allowed to maintain bank accounts in the name of BFP PL for such time as may be determined to be necessary by TP PL for presentation and deposition of cheques and pay orders that have been issued in the name of BFP PL, in relation to or in connection with the Demerged Undertaking.

e) It is hereby expressly clarified that any legal proceedings by or against BFP PL, in relation to or in connection with the Demerged Undertaking, in relation to the cheques and other negotiable instruments, payment orders received or presented for encashment, which is in the name of BFP PL shall be instituted, or as the case may be, continued by or against TP PL after the coming into effect of this Scheme.

Description of assets to be transferred from BFP PL to TP PL:

3.11 Details of assets to be transferred are of demerged Undertaking which are detailed in Annexure 1.

4. Transfer of contracts, deeds, etc.

4.1 Upon the coming into effect of this Scheme and subject to the provisions of this Scheme including Clause 4, all contracts, deeds, bonds, agreements, schemes, arrangements and other instruments of whatsoever nature in relation to Demerged Undertaking to which BFP PL is a party or to the benefit of which BFP PL may be eligible, and which are subsisting or have effect immediately before the Effective Date, shall continue in full force and effect against or in favour, as the case may be, of TP PL and may be enforced as fully and effectually as if, instead of BFP PL, TP PL had been a party or beneficiary or oblige thereto.

4.2 Without prejudice to the other provisions of this Scheme and notwithstanding the fact that vesting of the Demerged Undertaking occurs by virtue of this Scheme itself, TP PL may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required under any Law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which BFP PL is a party or any writings as may be necessary in order to give formal effect to the provisions of this Scheme. TP PL shall be deemed to be authorised to execute any such writings on behalf of BFP PL and to carry out or perform all such formalities or compliances referred to above on the part of BFP PL to be carried out or performed.

4.3 For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon the coming into effect of this Scheme, all consents, permissions, licenses, certificates, clearances, authorities, powers of attorney given by, issued to or executed in favour of BFP PL in relation to the Demerged Undertaking shall stand transferred to TP PL as if the same were originally given by, issued to or executed in favour of TP PL and TP PL shall be bound by the terms thereof, the obligations and duties thereunder and the rights and benefits under the same shall be available to TP PL. TP PL shall make applications to any Governmental Authority as may be necessary in this behalf.

4.4 Without prejudice to the aforesaid, it is clarified that if any assets (estate, claims, rights, title, interest in or authorities relating to such assets) or any contract, deeds, bonds, agreements, schemes, arrangements or other instruments of whatsoever nature in relation to the Demerged Undertaking which BFP PL owns or to which BFP PL is a party to, cannot be transferred to TP PL for any reason whatsoever, BFP PL shall hold such asset or

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contract, deeds, bonds, agreements, schemes, arrangements or other instruments of whatsoever nature in trust for the benefit of TP PL, insofar as it is permissible so to do, till such time as the transfer is effected.

5 Transfer of Liabilities

5.1 Upon the coming into effect of this Scheme, all debts, liabilities, loans raised and used, obligations incurred, duties of any kind, nature or description (including contingent liabilities which arise out of the activities or operations of the Demerged Undertaking of BFP PL as on the Appointed Date and relatable to the Demerged Undertaking shall, without any further act or deed, be and stand transferred to and be deemed to be transferred to TP PL to the extent that they are outstanding as on the Effective Date and shall become the debts, liabilities, loans, obligations and duties of TP PL which shall meet, discharge and satisfy the same. The term "Liabilities" shall include:

(i) the liabilities which arise out of the activities or operations of the Demerged Undertaking.

(ii) the specific loans or borrowings raised, incurred and utilized solely for the activities or operations of the Demerged Undertaking and

(iii) in cases other than those referred to in Clause 5.1(i) or Clause 5.1(ii) above, so much of the amounts of general or multipurpose borrowings, if any, of BFP PL, as stand in the same proportion which the value of the assets transferred pursuant to the Demerger bears to the total value of the assets of BFP PL immediately prior to the Effective Date.

5.2 Where any of the loans raised and used, debts, liabilities, duties and obligations of BFP PL as on the Appointed Date required to be transferred to TP PL have been discharged by BFP PL on or after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of TP PL.

5.3 Upon the coming into effect of this Scheme, all loans raised and used and all debts, liabilities, duties and obligations incurred by BFP PL for the operations of the Demerged Undertaking with effect from the Appointed Date and prior to the Effective Date, subject to the terms of this Scheme, shall be deemed to have been raised, used or incurred for and on behalf of TP PL and to the extent they are outstanding on the Effective Date, shall also without any further act or deed be and stand transferred to and be deemed to be transferred to TP PL and shall become the loans, debts, liabilities, duties and obligations of TP PL.

5.4 In so far as the existing Encumbrances in respect of the Demerged Undertaking are concerned, such Encumbrances shall, without any further act, instrument or deed be modified and shall be extended to and shall operate only over the assets comprised in the Demerged Undertaking which have been Encumbered in respect of the Demerged Undertaking as transferred to TP PL pursuant to this Scheme. Provided that if any of the assets comprised in the Demerged Undertaking which are being transferred to TP PL pursuant to this Scheme have not been encumbered in respect of the Demerged Undertaking such assets shall remain unencumbered and the existing Encumbrances referred to above shall not be extended to and shall not operate over such assets. The absence of any formal amendment which may be required by a lender or trustee or third party shall not affect the operation of the above.

5.5 For the avoidance of doubt, it is hereby clarified that in so far as the assets comprising the Remaining Business are concerned, subject to Clause 5.4, the Encumbrances over such assets relating to the Demerged Undertaking shall, as and from the Effective Date without any further act, instrument or deed be released and discharged from

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the obligations and Encumbrances relating to the same. The absence of any formal amendment which may be required by a lender or trustee or third party shall not affect the operation of the above. Further, in so far as the assets comprised in the Demerged Undertaking are concerned, the Encumbrances over such assets relating to any loans, borrowings or debentures or other debts or debt securities which are not transferred pursuant to this Scheme (and which shall continue with BFP PL), shall without any further act or deed be released from such Encumbrances and shall no longer be available as security in relation to such liabilities.

5.6 Without prejudice to the provisions of the foregoing Clauses and upon the effectiveness of the Scheme, BFP PL and TP PL shall execute any instrument(s) and/or document(s) and/or do all the acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charge, with the ROC to give formal effect to the above provisions, if required.

5.7 Upon the coming into effect of this Scheme, TP PL alone shall be liable to perform all obligations in respect of the Demerged Undertaking which have been transferred to it in terms of this Scheme, and BFP PL shall not have any obligations in respect of such Demerged Undertaking.

5.8 It is expressly provided that, save as mentioned in this Clause 5, no other term or condition of the liabilities transferred to TP PL as part of the Scheme is modified by virtue of this Scheme except to the extent that such amendment is required by necessary implication.

5.9 The provisions of this Clause 5 shall operate, notwithstanding anything to the contrary contained in any instrument, deed or writing or the terms of sanction or issue or any security document, all of which instruments, deeds or writings shall stand modified and/or superseded by the foregoing provisions.

The Net current assets: will be shared equally among Founder Directors i.e. NCS & YCS (current assets like Debtors, Inventories, Advances, etc. less current liabilities deposits & bank Cash Credit Limit).

6. Legal, taxation and other proceedings

6.1 Upon the coming into effect of this Scheme, all legal, taxation or other proceedings, whether civil or criminal (including before any statutory or quasi-judicial authority or tribunal), by or against BFP PL and relating to the Demerged Undertaking, under any statute, whether pending on the Appointed Date or which may be instituted any time thereafter, shall be continued and enforced by or against TP PL after the Effective Date. BFP PL shall in no event be responsible or liable in relation to any such legal or other proceedings against TP PL. TP PL shall be added as party to such proceedings and shall prosecute or defend such proceedings in co-operation with BFP PL.

6.2 If proceedings are taken against BFP PL in respect of the matters referred to in Clause 6.1 above, it shall defend the same in accordance with the advice of TP PL and at the cost of TP PL, and the latter shall reimburse and indemnify BFP PL against all liabilities and obligations incurred by BFP PL in respect thereof.

6.3 TP PL undertakes to have all legal or other proceedings initiated by or against BFP PL referred to in Clause 6.1 above transferred to its name as soon as is reasonably possible after the Effective Date and to have the same continued, prosecuted and enforced by or against TP PL to the exclusion of BFP PL. Each of the Companies shall make relevant applications in that behalf.

7. Conduct of business by BFP PL until the Effective Date

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7.1 With effect from the date of approval of this Scheme by the respective Board of Directors of BFP PL and TP PL, BFP PL undertakes to carry on the business and activities of the Demerged Undertaking with reasonable diligence, business prudence and shall not except in the ordinary course of business or without prior written consent of TP PL, alienate, charge, mortgage, encumber or otherwise deal with or dispose of the Demerged Undertaking or part thereof.

7.2 With effect from the date of approval of this Scheme by the respective Board of Directors of BFP PL and TP PL, BFP PL shall notify TP PL in writing as soon as reasonably practicable of any matter, circumstance, act or omission which is or may be a breach of this Clause 8.

8. Consideration

8.1 Upon the coming into effect of this Scheme and in consideration of the transfer and vesting of the Demerged Undertaking into TP PL pursuant to the provisions of this Scheme, TP PL shall, without any further act or deed, issue and allot to each shareholder of BFP PL, whose name is recorded in the register of members and records of the depositories as members of BFP PL, on the Record Date 4,78,285 (Four Lacs Seventy Eight Thousand Two Hundred and Eighty Five only) equity shares of Rs. 10/- (Rupees Ten Only) each of TP PL credited as fully paid-up for 600000 (Six Lacs) equity shares of Rs. 10/- (Rupees Ten Only) each held by such shareholder in BFP PL ("**New Equity Shares**"). The ratio (0.797:1) in which equity shares of TP PL are to be issued and allotted to the shareholders of BFP PL is referred to as the "**Share Entitlement Ratio**". It is clarified that no cash consideration shall be paid by TP PL to BFP PL or its shareholders.

8.2 The New Equity Shares to be issued and allotted as provided in Clause 8.1 above shall be subject to the provisions of the Memorandum and Articles of Association of TP PL and shall rank *pari-passu* in all respects with the then existing equity shares of TP PL after the Record Date including with respect to dividend, bonus entitlement, rights' shares' entitlement, voting rights and other corporate benefits.

8.3 In case any shareholder's shareholding in BFP PL is such that such shareholder becomes entitled to a fraction of an equity share of TP PL, TP PL shall not issue fractional share certificates to such shareholder but shall consolidate such fractions and issue and allot the consolidated shares directly to a trustee nominated by the Board of Directors of TP PL in that behalf, who shall sell such shares in the market at such price or prices and on such time or times as the trustee may in its sole discretion decide and on such sale, shall pay to TP PL, the net sale proceeds (after deduction of applicable taxes and other expenses incurred), whereupon TP PL shall, subject to withholding tax, if any, distribute such sale proceeds to the concerned shareholders of BFP PL in proportion to their respective fractional entitlements.

8.4 The New Equity Shares to be issued pursuant to Clause 8.1 above shall be issued in Paper form by TP PL, unless otherwise notified in writing by the shareholders of BFP PL to TP PL on or before such date as may be determined by the Board of Directors of BFP PL. In the event that such notice has not been received by TP PL in respect of any of the shareholders of BFP PL, the New Equity Shares shall be issued to such shareholders in Paper form provided that the shareholders of TP PL. In the event that TP PL has received notice from any shareholder that the New Equity Shares are to be issued in physical form or if any shareholder has not provided the requisite details relating to his/her/its account with a depository participant or other confirmations as may be required or if the said details provided by any shareholder do not permit electronic credit of the shares of TP PL, then TP PL shall issue New Equity Shares in physical form to such shareholder or shareholders.

8.5 The New Equity Shares issued and/or allotted pursuant to Clause 8.1, in respect of such of the equity shares of BFP PL as are held in abeyance under the provisions of Section 126 of the Act shall, pending settlement of dispute by order of court or otherwise, be held in abeyance by TP PL.

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8.6 The New Equity Shares issued pursuant to Clause 8.1, which TP PL is unable to allot due to applicable Laws (including, without limitation, the non-receipt of approvals of Governmental Authority as required under applicable Law) or any regulations or otherwise shall, pending allotment, be held in abeyance by TP PL and shall be dealt with in the manner as may be permissible under the applicable Law and deemed fit by the Board of Directors of TP PL including to enable allotment and sale of such New Equity Shares to a trustee as mentioned in Clause 8.3 above and thereafter make distributions of the net sales proceeds in lieu thereof (after deduction of taxes and expenses incurred) to the eligible shareholders of BFP PL, in proportion to their entitlements as per the process specified in Clause 8.3 above. If the above cannot be effected for any reason, TP PL shall ensure that this does not delay implementation of the Scheme; and shall, take all such appropriate actions as may be necessary under applicable Laws. TP PL and/or the depository shall enter into such further documents and take such further actions as may be necessary or appropriate in this regard and to enable actions contemplated therein.

8.7 In the event of there being any pending share transfers, whether lodged or outstanding, of any shareholders of BFP PL, the Board of Directors of BFP PL shall be empowered prior to or even subsequent to the Record Date, to effectuate such transfers in BFP PL as if such changes in registered holders were operative as on the Record Date, in order to remove any difficulties arising to the transferors of the shares in relation to the shares issued by TP PL. The Board of Directors of BFP PL shall be empowered to remove such difficulties that may arise in the course of implementation of this Scheme and registration of new shareholders in TP PL on account of difficulties faced in the transition period.

8.8 The issue and allotment of the New Equity Shares in terms of this Scheme shall be deemed to have been carried out as if the procedure laid down under Section 62 of the Act and any other applicable provisions of the Act have been complied with.

8.9 TP PL shall, if and to the extent required to, apply for and obtain any approvals from the Governmental Authorities including Reserve Bank of India, for the issue and allotment of New Equity Shares by TP PL to the non-resident equity shareholders of BFP PL.

There shall be no change in the shareholding pattern or control in TP PL between the Record Date and the listing of the equity shares on the Stock Exchanges.

9. Authorised share capital of TP PL

9.1 As an integral part of the Scheme, and, upon the coming into effect of this Scheme, the authorised share capital of TP PL shall automatically stand increased, without any further act, instrument or deed on the part of TP PL, such that upon the effectiveness of the Scheme the authorised share capital of TP PL shall be Rs. 48,82,850/- (Rupees Forty Eight Lacs Eighty Two Thousand Eight Hundred and Fifty Only), without any further act or deed. Consequently, Clause V of the Memorandum of Association of TP PL shall without any act, instrument or deed be and stand altered, modified and substituted pursuant to Sections 13, 61 and 230 to 232 and other applicable provisions of the Act, as the case may be, in the manner set out below and be replaced by the following clause:

> "V. The Authorised Share Capital of the Company is Rs. 48,82,850/- (Rupees Forty Eight Lacs Eighty Two Thousand Eight Hundred and Fifty Only) divided into 4,88,285 (Four Lacs Eighty Eight Thousand Two Hundred and Eighty Five) Equity Shares of Rs. 10/- (Rupees Ten Only) each."

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9.2 It is clarified that the approval of the shareholders of TP PL to the Scheme shall be deemed to be their consent/approval also to the consequential alteration of the Memorandum of Association of TP PL and TP PL

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...shareholders required to seek separate consent/approval of its shareholders for such alteration of the Memorandum of Association of TP PL as required under Sections 13 and 61 of the Act.

9.3 Upon the coming into effect of this Scheme, TP PL shall file the requisite forms with the ROC for alteration of its authorised share capital and shall pay necessary fees as may be required to be paid in accordance with Law.

10. Accounting treatment in the books of BFP PL

10.1 Upon the coming into effect of this Scheme, the investment held by BFP PL in TP PL, if any, shall stand cancelled.

10.2 BFP PL shall account for the transfer and vesting of the Demerged Undertaking in its books of account as per the applicable Accounting Standards notified under Section 133 of the Act read with relevant rules issued thereunder after considering the adjustment provided under clause 10.1 of the Scheme.

10.3 The difference being the excess of the book value of the assets over the book value of liabilities pertaining to the Manufacturing of the Plastics and demerged from BFP PL pursuant to this Scheme shall be first adjusted against the Capital Reserve of BFP PL and balance if any shall be adjusted against the other reserves of BFP PL.

11. Accounting treatment in the books of TP PL

11.1 Upon the coming into effect of this Scheme, the existing shareholding of BFP PL in TP PL shall stand cancelled. Upon cancellation, TP PL shall debit to its Equity Share Capital Account, the aggregate face value of the Equity Shares held by BFP PL in TP PL which stands cancelled hereof.

11.2 TP PL shall account for the transfer and vesting of the Demerged Undertaking in its books of account as per the "Pooling of Interest Method" prescribed under Indian Accounting Standard 103 – "Business Combinations" notified under Section 133 of the Act read with relevant rules issued thereunder and other applicable accounting standards prescribed under the Act after considering the adjustment provided under clause 12.1 of the Scheme.

PART C

REMAINING BUSINESS OF BFP PL

12. Remaining Business

12.1 The Remaining Business and all the assets, liabilities and obligations pertaining thereto shall continue to belong to and be vested in and be managed by BFP PL subject to the provisions of this Scheme in relation to Encumbrances in favour of banks, lenders and/or financial institutions.

12.2 All litigation or other proceedings whether civil or criminal (including before any statutory or quasi-judicial authority or tribunal) by or against BFP PL under any statute, whether pending on the Appointed Date or which may be instituted at any time thereafter, and in each case relating to the Remaining Business (including those relating to any property, right, power, liability, obligation or duties of BFP PL in respect of the Remaining Business) shall be continued and enforced by or against BFP PL after the Effective Date, which shall keep TP PL fully indemnified in that behalf.

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12.3 If proceedings are taken against TP PL in respect of the matters referred to in Clause 12.2 above, it shall defend the same in accordance with the advice of BFP PL and at the cost of BFP PL, and the latter shall reimburse and indemnify TP PL against all liabilities and obligations incurred by TP PL in respect thereof.

12.4 Up to and including the Effective Date:

(i) BFP PL shall carry on and shall be deemed to have been carrying on all business and activities relating to the Remaining Business for and on its own behalf;

(ii) all profits accruing to BFP PL or losses arising or incurred by it (including the effect of taxes, if any, thereon) relating to the Remaining Business shall, for all purposes, be treated as the profits or losses, as the case may be, of BFP PL; and

(iii) all assets and properties acquired by BFP PL in relation to the Remaining Business on and after the Appointed Date shall belong to and continue to remain vested in BFP PL.

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PART D

GENERAL TERMS AND CONDITIONS

13. Applications

13.1 The Companies shall make applications and/or petitions under Sections 230 to 232 of the Act and other applicable provisions of the Act to the NCLT for approval of the Scheme and all matters ancillary or incidental thereto, as may be necessary to give effect to the terms of the Scheme.

13.2 TP PL shall be entitled, pending the effectiveness of this Scheme, to apply to any Governmental Authority, if required under any Law for such consents and approvals which TP PL may require to carry on the business transferred to it pursuant to this Scheme.

14. Modifications to the Scheme

14.1 The Companies (by their respective Board of Directors), may jointly and as mutually agreed in writing:

(i) in their full and absolute discretion, assent to any alteration(s) or modification(s) to this Scheme which NCLT may deem fit to approve or impose, and/or effect any other modification or amendment jointly and mutually agreed in writing, including, without limitation, any modifications to the accounting treatment set out in the Scheme due to any change in regulatory or compliance requirements being made applicable to the Companies or to the matters set forth in this Scheme, and to do all acts, deeds and things as may be necessary, desirable or expedient for the purposes of this Scheme;

(ii) to give such directions (acting jointly) as they may consider necessary to settle any question or difficulty arising under this Scheme or in regard to and of the meaning or interpretation of this Scheme or implementation thereof or in any matter whatsoever connected therewith, or to review the position relating to the satisfaction of various conditions of this Scheme and if necessary, to waive any of those (to the extent permissible under Law);

in their full and absolute discretion, modify, vary or withdraw this Scheme prior to the Effective Date in any manner at any time; and

determine whether any asset, liability, employee, legal or other proceedings pertains to the Demerged Undertaking, or not, on the basis of any evidence that they may deem relevant for this purpose.

to the Scheme by BFP PL and/or TP PL, after receipt of sanction by the NCLT, shall be made only with approval of the NCLT

15. Scheme as an integral whole and Severability

15.1 The terms contained in this Scheme are inextricably inter-linked with the other provisions and the Scheme constitutes an integral whole. The Scheme would be given effect to only if it is approved in its entirety, unless specifically agreed otherwise by the respective Board of Directors of the Companies.

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(ii) If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the mutual agreement of the Companies in writing, affect the validity or implementation of the other parts and/or provisions of this Scheme.

16. Scheme conditional on

The coming into effect of this Scheme is conditional upon and subject to:

(i) this Scheme being approved by the respective requisite majorities of the classes of members and creditors (where applicable) of the Companies in accordance with the Act;

(ii) the Appointed Date having ensued;

(iii) the NCLT having accorded its sanction to the Scheme;

(iv) the certified copies of the orders of the NCLT approving this Scheme being filed with the ROC; and

(v) such approvals and sanctions including sanction of any Governmental Authority, if any, as may be required by Law in respect of the Scheme being obtained.

17. Effect of non-receipt of approvals and matters relating to revocation/withdrawal of the Scheme

17.1 In the event of any of the sanctions and approvals not being obtained and/or the Scheme not being sanctioned by the NCLT, and/or the order or orders not being passed as aforesaid on or before 30th day of September, 2021 or within such further period or periods as may be agreed upon between BFP PL and TP PL through their respective Board of Directors, the Scheme shall become null and void and the Companies shall bear and pay its respective costs, charges and expenses for and/or in connection with the Scheme.

17.2 BFP PL and TP PL acting through their respective Board of Directors shall each be at liberty to withdraw from this Scheme, (i) in case any condition or alteration imposed by any appropriate authority/person is unacceptable to any of them or (ii) they are of the view that coming into effect of this Scheme could have adverse implications on the respective Companies.

17.3 In the event of revocation/withdrawal under Clauses 17.1 and 17.2 above, no rights and liabilities whatsoever shall accrue to or be incurred inter se BFP PL and TP PL or their respective shareholders or creditors or employees or any other person save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or in accordance with the applicable Law and in such case, the Companies shall bear its own costs, unless otherwise mutually agreed.

18. Taxes

18.1 TP PL will be the successor of the BFP PL vis-à-vis the Demerged Undertaking. Hence, it will be deemed that the benefits of any tax credits, whether, central, state, or local, availed vis-à-vis the Manufacturing of Plastic Division and the obligations, if any, for the payment of taxes on any assets of the Demerged Undertaking shall be deemed to have been availed by TP PL, or as the case may be, deemed to be the obligation of TP PL.

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Jaimin R. Dave

18.2 With effect from the Appointed Date and upon the coming into effect of this Scheme, all taxes, duties, cess, receivables / payables by BFP PL relating to the Manufacturing of Plastics , including all or any refunds / credits / claims relating thereto, shall be treated as the assets / liabilities or refunds / credits / claims, as the case may be, of TP PL.

18.3 Upon the coming into effect of this Scheme, TP PL and BFP PL shall file/revise their income tax returns, TDS certificates, TDS returns, and other statutory returns, if required, and shall have the right to claim refunds, credit of tax deducted at source, credit of foreign taxes paid/ withheld etc., if any (except as specifically provided in respect of the Remaining Business), as may be required consequent to implementation of this Scheme. Such returns shall be revised and filed with effect from Appointed Date and any tax including Minimum Alternate Tax shall be computed accordingly.

15. Costs

All costs, charges, levies and expenses (including, but not limited to, stamp duty, etc.) in relation to or in connection with the Scheme and incidental to the completion of the Scheme and of carrying out the terms of this Scheme shall be borne as mutually agreed by the Board of Directors of BFP PL and TP PL.

For BILLION FLEXIPACK PRIVATE LIMITED
CIN : U25207GJ2001PTC039141

PARIN CHANDIRAM SHAHANI
[illegible]

Place : Vadodara

For TRUDER PACKAGING PVT LTD
CIN U25209GJ2018PTC101691

YOGESH CHANDIRAM SHAHANI
Director
DIN : 01103404

Place : Vadodara

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Jasmin R. Dave

Annexure-B

List of Assets of Demerged undertaking of Bullion Flexipack Private Limited as on _____ to be transferred to Truder Packaging Private Limited, pursuant to the scheme of Arrangement and De-Merger of M/s. Bullion Flexipack Private Limited (Demerged Company) into M/s. Truder Packaging Private Limited (Resulting Company).

Schedule

Part I

Particulars of Freehold Properties

(i) Land:

Complete Address	Area in Sq. Meters	Brief Description of location
Plot no. 437,A-1,GIDC Estate, Makarpura	1480.60	Land is located in Makarpura, Vadodara
Survey no. 525/A/2 Vadodara-Halol Express Highway, ASOJ.	10275	Land is located in Asoj Halol

(ii) Building:

Complete Address	Area in Sq. Meters	Brief Description of location
Security Cabin	6.88	Plot no. 437,A-1,GIDC Estate, Makarpura
Store Room, locker Room, W.C	44.28	
A-1 type industrial(shed type)	671.59	
GF(Reception, Raw Material, Store)	103.6	
FF (Mezzanine Floor)	159.98	
GF(Toilet block,Store room)	43.43	
Store room(RCC slab+AC sheet)	30	
Parking shed , material store shed	249	
Parking shed , material store shed	195	

For Bullion Flexipack Pvt. Ltd

Director

BULLION FLEXIPACK PVT. LTD. JAROD

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Bullion Flexipack Pvt. Ltd
328/15, Jarod Rasulabad Roa
Nr. Referral Hospita
Off Baroda-Halol Express Highwa
Jarod, Vadodara-391510, Gujarat. Indi

BULLION FLEXIPACK
packnology perfected

(iii) Plant and Machinery

Brief Description of Machinery	Complete Address of Location
Slitting Rewinding Machine M/C (1Qty)	20, 21/B, Off Nh-8, Next To Horizon Industrial Park, Vill-Bamangam, Vadodara, Gujarat 391240
Sleeves Cutting Machine (4 Qty)	
Doctoring Machine (1Qty)	
Performing Machine (1Qty)	
Rubber Rollers Stand	
Shrink Tunnel Machine 2-Stage (1Qty)	
Roll To Roll Rewinder (1Qty)	
Strapping Machine (1Qty)	
Web Aligner (1Qty)	
Trolly (4 Qty)	
Compressor (1Qty)	
Sleeving Machine (1Qty)	
Trim Rewinding Machine (1Qty)	
Extrusion M/C 1 (1Qty)	
Mixer M/C 1 (1Qty)	
Roto Grevier1- Other (1Qty)	
Inspection Table (1Qty)	
Hemingston Side Sealing (1Qty)	
Heavy Duty Bottom Sealing -2 (1Qty)	
Gussetting M/C 2 (1Qty)	
Loop Handle Fixing M/C-2 (1Qty)	
Manual B.S. Fixing Machine (4 Qty)	
Glue Cloating Machine (1Qty)	
Manual D. Punch & Top Cut M/C (2 Qty)	

Ltd.

BULLION FLEXIPACK PVT. LTD. JARODA

For Bullion Flexipack Pvt

For Bullion Flexipack Pvt. Ltd

Director

Yogesh Shahani

Director

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Bullion Flexipack Pvt. Ltd
328/15, Jarod Rasulabad Roac
Nr. Referral Hospita
Off Baroda-Halol Express Highwa
Jarod, Vadodara-391510, Gujarat, Indi

Annexure 1

Details of the tangible assets to be transferred by Bullion Flexipack Pvt. Ltd. (Transferor Company) to Trudent Packaging Private Limited(Transferee Company)

A.Valuation of Land

Sr.No.	Description	Area in Sq. m	Rate	Fair Value
1	Plot no. 437,A-1,GIDC Estate, Makarpura	1480.6	6360	94,16,616
2	Survey no. 525/A/2 Vadodara-Halol Express Higl	10275	780	80,14,500
Total"A"				1,74,31,116

B.Valuation of Building

Sr.No.	Description	ConstructionArea in Sq. m	Fair Value
1	Security Cabin	6.88	18457
2	Store Room, locker Room, W.C	44.28	150571
3	A-1 type industrial(shed type)	671.59	3098857
	GF(Reception, Raw Material, Store)	103.6	302114
	FF (Mezzanine Floor)	159.98	466286
	GF(Toilet block,Store room)	43.43	116086
4	Raw Material store(Backside)	124.57	211771
5	Store room(RCC slab+AC sheet)	30	65571
6	Parking shed , material store shed	249	362829
7	Compound Wall (including Gate)	195	161257
Total "B"			4953799

C.Plant and Machinery

Sr. No.	Machine Name	Qty.	Fair Value (Rs.)
1	Slitting Rewinding Machine M/C	1	10,40,000
2	Sleeves Cutting Machine	1	8,58,055
3	Sleeves Cutting Machine	2	15,17,966
4	Sleeves Cutting Machine	1	3,70,098
5	Doctoring Machine	1	7,10,000
6	Performing Machine	1	70,182
7	Rubber Rollers Stand	3	-
8	Shrink Tunnel Machine 2-Stage	1	2,00,000
9	Roll To Roll Rewinder	1	80,000
10	Strapping Machine	1	21,823
11	Web Aligner	1	25,000
12	Trolly	4	60,000
13	Compressor	1	1,70,787
14	Sleeving Machine	1	12,60,000
15	Trim Rewinding Machine	1	45,000
16	Extrusion M/C 1	1	1,25,000
17	Mixer M/C 1	1	40,000
18	Roto Grevier1- Other	1	5,25,000
19	Inspection Table	1	34,975
20	Hemingston Side Sealing	1	22,10,000
21	Heavy Duty Bottom Sealing -2	1	6,04,120
22	Gussetting M/C 2	1	10,35,213
23	Loop Handle Fixing M/C-2	1	3,50,000
24	Manual B.S. Fixing Machine	4	8,000
25	Glue Cloating Machine	1	4,18,000
26	Manual D. Punch & Top Cut M/C	2	6,665
Total "C"			1,17,85,884

Total(A+B+C)	3,41,70,799

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BULLION FLEXIPACK PVT. LTD. JARODA

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